

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN KENYA

Complete Community Opposition How-To

This is a practical manual for community groups, coastal and fishing communities, pastoralists, farmers, and citizens' networks who wake up to find that a coast, a forest, a rangeland, a river, or a stretch of land they depend on has been opened to something destructive — a coal or thermal power plant, a mine, a large dam, a port or transport corridor, an industrial or real-estate scheme. It explains how Kenya's approval system for large projects actually works, where the real openings are, what to document, how to organise, and how to use the levers Kenyan law and Kenya's own history of community resistance provide. It does not promise that any project can be stopped. It offers a clear-eyed method that gives you the best possible chance.

INTRODUCTION & FRAMEWORK

Why This Matters

Across Kenya, communities discover that a place they live from — a coastline and its fisheries, a forest their families have used for generations, a rangeland, a river, a stretch of farmland — has been licensed to a company or a state project, often through decisions taken in Nairobi or a county headquarters and without the people on the land being genuinely consulted. The first sign is often the survey teams and beacons, a public-participation meeting few could reach or hear of, the machinery arriving, or the quiet news that an environmental impact assessment licence has been granted to a company most in the affected community had never heard of.

Kenya's situation is, in one crucial respect, hopeful. This is a country of intense development pressure — coal and thermal power, mining, large dams, ports and transport corridors, real estate on fragile land — but it is also a country with one of the strongest environmental constitutions in the world and a documented history of communities using it to win. The single most important fact for any Kenyan community to hold onto is this: **a coastal community in Kenya took on a billion-dollar coal power plant and defeated it — a tribunal cancelled the project's licence for a flawed assessment and a failure to consult the public, and the courts upheld that decision.** That is not a slogan. It is the record of Lamu, and it is the ground this guide stands on.

The struggle that teaches both truths a community must hold at once is the fight over the proposed coal-fired power plant at Lamu, on Kenya's coast. Amu Power planned a 1,050-megawatt coal plant near Lamu — an archipelago whose old town is a UNESCO World Heritage Site and whose mangroves, seagrass, and reefs sustain fishing and tourism. When the national environment authority, NEMA, issued the project an environmental impact assessment licence in 2016, the community organised. Save Lamu — a coalition of some forty local groups — with the deCOALonize campaign and the support of public-interest lawyers, appealed the licence to the National Environment Tribunal. And in June 2019 the Tribunal ruled in their favour: it found that the environmental and social impact assessment was inadequate and that the required public participation had not genuinely happened, and it cancelled the licence, ordering that any revived project undergo a fresh assessment. When the company appealed, the Environment and Land Court, years later, upheld the cancellation, holding that the flawed process had violated the constitutional right to a clean and healthy environment. A coastal community had beaten a billion-dollar coal project in Kenya's own institutions. That is real power, and it is Kenyan. The detail is worth holding onto. The plant, a project of some two billion US dollars planned for the Kwasasi area of Lamu County, was to be Kenya's first coal-fired power station. The Tribunal delivered its cancellation on 26 June 2019, ordering that any revived project undertake a fresh environmental and social impact assessment examining the impacts on people's livelihoods, health, and land. Years later, when the Environment and Land Court dismissed the company's appeal, it found the assessment had failed to address even basic questions such as ash disposal, air pollution, and climate change, and held that the flawed process had violated the constitutional guarantees of a clean and healthy environment. What began as a local worry on a remote coast ended as a national precedent.

The second truth is sobering. **The victory took the better part of a decade, and it was won against the current of a state that championed the project.** The plant was part of a flagship national development push; the licence was granted despite the community's objections; and the fight required years of organising, litigation, and appeal before it was secure. Not every community has Lamu's allies or its endurance, and many Kenyan projects proceed over local objection when the assessment is adequate and the state is determined. Kenya shows both what a determined community and Kenya's remarkable environmental law can achieve — a licence cancelled, a coal plant stopped, a constitutional right

vindicated — and how long and hard the fight can be when the government backs the project.

Underneath both truths is the framework this guide will help you use: **Kenya's 2010 Constitution guarantees every person the right to a clean and healthy environment and lets any person go to court to defend it, without having to prove personal loss; it makes public participation a national value; it has a framework environmental law with a mandatory impact-assessment and public-participation process, a specialist environment tribunal, and a dedicated Environment and Land Court; it has an access-to-information law and a community-land law; and it has a vigorous civil society and a free press.** Protest, petition, and litigation are lawful. That combination is what this guide is about, and it is a combination few communities anywhere can draw on so fully.

The Strategic Framework

The core idea is simple: **a destructive project is not a single event but a chain of decisions and dependencies, and a chain can be broken at its weakest link.** A large project in Kenya needs an environmental impact assessment and a NEMA licence; it needs genuine public participation, which the law and the Constitution require; on community land it needs consent under the community-land law; it must respect the right to a clean and healthy environment that any citizen can enforce; it must survive the National Environment Tribunal and the Environment and Land Court; and it must avoid the scrutiny of a free press and a watchful public. Each is a potential point of leverage.

Your task is to find the link you can reach. Sometimes it is the assessment and a defect in it — an impact never studied, a public participation that never genuinely happened, exactly the flaws that sank the Lamu licence. Sometimes it is the community land and the consent the law requires. Sometimes it is the constitutional right itself, which any person can enforce in court. Sometimes it is the Tribunal, which can cancel a licence outright. And often it is the press and public attention that a project cannot escape.

Critical Caveat: Which Situation Are You In?

Throughout this guide you will find honest assessments, because a guide that promised any project can be stopped by the right petition would be lying to you.

Where a project's assessment has a real defect or its public participation was hollow, and you can organise and reach the Tribunal, the courts, and the press, Kenya's levers are genuine. Lamu is the proof that a flawed assessment and a failure to consult can cancel a licence, even for a flagship project.

Where the government champions the project, where the assessment and participation are adequate, and where the fight demands years of endurance, the outright stop is hard, and resistance can carry real cost. The decade-long Lamu battle, waged against a state that backed the plant, is the warning. There the levers still matter, but you must weigh the odds honestly and think in terms of a cancelled or conditioned licence, delay, safeguards, and exposure as much as an easy stop.

Much of this guide is designed to help you judge which situation you are in.

How to use this guide

Read the whole thing once before acting. Read the legal, organising, and tilted-system sections with particular care, because in Kenya the impact assessment and its public participation, the constitutional right to a clean and healthy environment, the National Environment Tribunal, and the Environment and Land Court are the sharpest levers, and the government's stance shapes everything. Two principles run throughout. First, **use the participation and the rights the law gives you**: the assessment's public-participation requirement, the constitutional right any person can enforce, community-land consent — these are real, strong rights, and much of your work is insisting they be honoured. Second, **combine the strands**: documentation, the licence challenge, the courts, the press, and public attention work far better together than any one alone — exactly as the Lamu campaign combined them.

HOW THE SYSTEM WORKS

To break the chain you must understand it. This section explains the levels of decision, the journey a project takes from assessment to construction, how to follow the money behind it, and who is supposed to be watching.

The Levels of Decision

Decisions about large projects in Kenya are made at several levels, and the level determines where you push.

National level. The National Environment Management Authority (NEMA), a national body created by the framework environmental law, issues the environmental impact assessment licence that almost every significant project needs — the licence that was cancelled at Lamu. National ministries and agencies champion and approve major projects, and national laws — the Environmental Management and Coordination Act, its impact-assessment regulations, the community-land law — set the framework the whole system follows. The framework environmental law, first enacted in 1999 and strengthened since, is the backbone: it creates NEMA as the principal environmental authority, and alongside it a **National Environment Tribunal** to hear appeals, a **Public Complaints Committee** to receive environmental grievances, and **County Environment Committees** to carry environmental management into the devolved counties. The detail of how a project is assessed and consulted on is set out in the impact-assessment and audit regulations, which is where the public-participation requirement that decided Lamu is spelled out.

County level. Under Kenya's devolved system, the forty-seven county governments have real powers over land use and physical planning, local licensing, and many services, and County Environment Committees operate under the environmental law. A county government can be an ally or an obstacle, and county-level planning and land decisions are often where a project is enabled or resisted on the ground.

Community and local level. Community land — held by communities on the basis of ethnicity, culture, or similar community of interest — is governed by the community-land law, which requires the registered community's involvement and consent in decisions about that land. The community assembly and its elected land-management committee are, for such communities, the bodies whose consent a project may need. This is both where the harm lands and where your organising begins. Devolution also multiplies your points of entry: because the counties hold real powers over land use and physical planning, a project that needs a county's planning approval or that conflicts with a county's land-use plan can be resisted at the county level even where the national government is determined, and a supportive county government or county assembly can become a significant ally in its own right.

The point: match your effort to the level that holds the decision you are trying to affect. The NEMA licence is national; land use, planning, and many local approvals are county-level; and community-land consent is exercised by the registered community itself.

A Project's Journey — and Where It Can Be Stopped

A large project typically moves through recognisable stages. Each is a potential intervention point.

1. Project report and screening. The proponent submits a project report to NEMA, which decides whether a full environmental impact assessment study is required. *Intervention point:* whether a project that plainly needs a full study is wrongly waved through on a project report alone.

2. The environmental impact assessment study. For a significant project the proponent's expert prepares a full EIA study, which by the impact-assessment regulations must include seeking the views of those who may be affected. *Intervention point:* the quality and honesty of the study — its treatment of health, environment, livelihoods, and climate — and, crucially, whether the public participation genuinely happened; a hollow participation is the flaw that cancelled the Lamu licence. It is worth knowing precisely what the participation requirement demands: the impact-assessment regulations require the proponent, during the EIA study, to seek the views of the persons who may be affected — not merely to hold a single early meeting and move on. In the Lamu case the argument turned in part on whether participation at an early scoping stage could excuse the absence of genuine participation during the study itself; the answer, in effect, was no. That distinction is a gift to communities: a project cannot buy off the participation requirement with one token gathering at the outset.

3. NEMA review and the licence. NEMA reviews the study and grants or refuses the EIA licence, with conditions. *Intervention point:* whether the licence was lawfully granted on a sound study and genuine participation — a licence resting on a defective assessment can be cancelled by the Tribunal.

4. Sectoral approvals and land. Sectoral permits, land acquisition or the use of community or public land, and financing follow. *Intervention point:* community-land consent, the acquisition of land, and the use of protected or public land are all contestable.

5. Construction and operation. The project is built and run. *Intervention point:* whether it complies with its licence conditions and the law — a documented violation is leverage, and the constitutional right lets any person go to court to stop ongoing harm.

The chain has many links. Your job is to find the one nearest to hand.

Follow the Money and the Permissions

Behind every project is a structure of ownership, finance, and permission you can map — and mapping it tells you where the pressure points are.

Who is the proponent, and who owns it? The project's own documents, company records, and any stock-exchange disclosures reveal who is behind it and who controls it. Many large Kenyan projects involve consortia of local and foreign companies, sometimes with state participation; ownership determines reputational exposure and which levers apply.

What permissions does it need, and which does it lack? Map the EIA licence, the sectoral approvals, the land, and any county consents. The permission the project still needs — a licence not yet granted or under challenge, community-land consent not yet obtained, land not yet acquired — is where it is most vulnerable.

Who is financing it? Trace the lenders and investors. Large Kenyan projects have often depended on foreign banks, export-credit agencies, and development financiers, each with its own environmental standards and, sometimes, its own grievance mechanism. The Lamu plant's backers faced exactly this kind of financial and reputational pressure. Following the money reveals further points of leverage — and financiers have walked away from projects that became too controversial. This is not theoretical. Large Kenyan energy and infrastructure projects have depended on foreign banks, export-credit agencies, and development lenders, several of which have public commitments on the environment, on human rights, and — increasingly — on climate, and several of which have grievance mechanisms a community can invoke directly. A coal plant in particular runs against a global tide of lenders and insurers withdrawing from coal, so that a well-documented, accurately told campaign can find that the project's weakest link is not a Kenyan permit at all but a financier unwilling to bear the reputational and climate risk. Mapping the money is therefore not a side task but a search for one of the most decisive levers you have.

Who Is Supposed to Be Watching

Several institutions exist to check power, and each is a potential ally or venue.

NEMA and the County Environment Committees administer the assessment system and are meant to monitor compliance — and can be pressed, formally and publicly, to do so.

The National Environment Tribunal hears appeals against NEMA's licensing decisions and can cancel a licence, as it did at Lamu; it is examined in detail below.

The Environment and Land Court is a dedicated court, of the same status as the High Court, for environmental and land disputes, and hears appeals from the Tribunal.

The Public Complaints Committee under the environmental law receives complaints about environmental harm and administrative failures. It offers a lower-cost, less adversarial route than litigation for putting a grievance on the official record and prompting an investigation, and its findings can add weight to a later Tribunal appeal or court petition. For a community with little money and no lawyer yet, it can be a useful first formal step, creating an official paper trail that later, better-resourced stages of the campaign can build upon. Alongside it, the **auditor-general** can be a powerful, if indirect, ally where a project involves public money or a public-private partnership, because a critical audit of a project's costs or procurement can shift the political ground beneath it.

The civil-society organisations, public-interest law groups, and the free press are experienced, well-connected, and often your fastest route to expertise and national attention — the Lamu community's allies are the standing example. It helps to understand the ecosystem you are joining. Kenya has public-interest and constitutional-law organisations that litigate environmental and rights cases, human-rights bodies with national reach, environmental and climate campaigns that connect local fights to regional and global movements, and community-land organisations that help communities register and defend their land. Around them sit scientists, health and marine experts, and investigative journalists. A small community's fight, plugged into this ecosystem early, gains lawyers, experts, national reach, and solidarity far beyond the affected villages — exactly the combination of local community, national campaign, and public-interest lawyers that carried Lamu from a coastal grievance to a national precedent.

No single one of these is a guarantee. Together they are the architecture of accountability this guide teaches you to use.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns from

how Kenyan and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the assessment has a real defect or the public participation was hollow, whether community land or a protected area is involved, whether you can reach the Tribunal and the courts, and how firmly the government backs the project. Where the assessment is defective or participation failed and the world is watching, Kenya's levers are real; where the government champions the project and the process was sound, discount the figures and think in terms of a cancelled or conditioned licence, delay, safeguards, and exposure.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Public participation in the EIA study	15-35%	during review	low	On record; conditions or a redo
Appeal to the National Environment Tribunal	30-55%	6-30 months	low-moderate	Licence cancelled or reviewed; fresh assessment ordered
Constitutional / Environment and Land Court petition	25-45%	12-36 months	moderate	Right enforced; project halted or reviewed; delay
Asserting community-land consent	25-50%	6-36 months	low	Consent required; project stalled or moved
Access-to-information requests exposing defects	15-35%	1-6 months	low	Record obtained; defect proven; leverage
Documenting a legal violation (licence-condition breach)	25-45%	3-18 months	low	Breach exposed; leverage; possible sanction
Mass, connected public mobilisation	25-45%	6-36 months	low	Political cost; a project reconsidered
All steps combined (defective assessment or participation, world watching)	45-65%	12-36 months	low-moderate	Cancelled, stalled, delayed, or forced to change
All steps combined (government-backed, process sound)	20-40%	12-48 months	low-moderate	Delayed, conditioned, exposed; rarely a clean stop

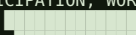
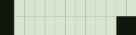
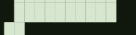
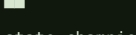
Key insight: all steps together beat any single one, and Kenya's real strengths are unusual — a **constitutional right to a clean and healthy environment** that **any person can enforce in court without proving personal loss**; **public participation** as a national value and a legal requirement whose breach can void a licence; a **specialist National Environment Tribunal** that can cancel a NEMA licence and a dedicated **Environment and Land Court** above it; a **community-land law** giving registered communities consent rights; an **access-to-information law**; and a **vigorous civil society and free press**. Its constraints are a **state that backs flagship projects, assessments and participation that are sometimes rushed or rubber-stamped**, the **years of endurance** a fight can demand, and real **pressure on those who resist**.

A note on cost: participating, documenting, and organising are inexpensive, and public-interest law groups and environmental organisations have carried community cases to the Tribunal and the courts without charge — Save Lamu was supported by exactly such allies. The expenditure that most changes outcomes is committed legal support and the reach of a sustained public campaign — both of which the Lamu movement marshalled over many years.

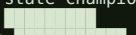
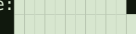
Effectiveness Visualization

SUCCESS PROBABILITY (cancelled, stalled, delayed, forced to change, or stopped)

DEFECTIVE ASSESSMENT OR PARTICIPATION, WORLD WATCHING:

All steps combined:  45-65%
 Tribunal appeal:  30-55%
 Community-land / rights:  25-50%
 Court petition (Art. 42/70):  25-45%
 Single step:  5-45%

GOVERNMENT-BACKED PROJECT -- state champions it, process sound:

All steps combined:  20-40%
 Rights + endurance + exposure:  the strongest combination
 Delay / conditioned licence:  more achievable than a clean stop
 Single step:  5-30%

How to read this honestly. The levers that most change outcomes in Kenya are **the Tribunal and the constitutional right**, reinforced by public-participation defects, community-land consent, and public attention. Lamu shows the ceiling: a flagship coal plant's licence cancelled for a flawed assessment and a failure to consult, and the cancellation upheld on appeal. It also shows the floor: a fight that took the better part of a decade against a state that backed the project. Most Kenyan fights sit between them, and the honest lesson is that Kenya's rights and institutions are real and have delivered outright wins — but against a government-backed project with a sound process the realistic win is often a conditioned licence, delay, safeguards, and exposure as much as a clean, permanent stop.

Step Importance Ranking (When All Combined)

1. **The National Environment Tribunal appeal** — where the assessment is defective or the public participation was hollow, the Tribunal can cancel the NEMA licence, and the Environment and Land Court can uphold it, as at Lamu. This is Kenya's sharpest legal lever.
2. **The constitutional right and community-land consent** — the Article 42 right any person can enforce, and the consent registered communities hold over their land.
3. **Documentation of the assessment's defects and any violations** — the record, much of it obtainable through access-to-information requests, that grounds every other step.
4. **Public participation in the EIA study** — the formal, constitutionally rooted right that puts your case on the record and whose breach is itself fatal to a licence.
5. **Public mobilisation and the press** — the further fronts that raise the political cost, reach financiers, and protect the campaign.

What Kenyan Campaigns Actually Show

A few patterns recur. **A defective assessment and a failure to consult can cancel a licence** — at Lamu, the National Environment Tribunal in 2019 cancelled the coal plant's EIA licence because the assessment was inadequate and the public participation had not genuinely happened, and the Environment and Land Court upheld the cancellation. **Any Kenyan can enforce the right to a clean environment** — the Constitution lets a person go to court to defend the environment without proving personal loss, a genuinely powerful and unusual lever. **Community and Indigenous land rights are real** — communities such as the Endorois around Lake Bogoria and the Ogiek of the Mau Forest have won recognition of their ancestral-land rights before African regional human-rights bodies, affirming that communities cannot simply be pushed off their land. **But the state often backs the project** — the coal plant was a flagship, granted its licence over objection, and the win took years of endurance. **And resistance can carry cost** — Kenyan environmental defenders have faced intimidation and hardship. The through-line: **use the public participation and the constitutional right, appeal a defective licence to the National Environment Tribunal, assert community-land consent, extract the record and document every defect, mobilise the press and the public — and expect a fight measured in cancelled or conditioned licences, delay, safeguards, and exposure as much as a clean stop, while knowing that in Kenya a coastal community once defeated a billion-dollar coal plant.**

STEP 1: TARGET IDENTIFICATION

Before you can fight a project, you must understand it precisely. Vague opposition to "the project" is weak; a specific challenge to a specific decision is strong. This step turns alarm into a target.

The Five Core Questions

Answer these five questions, in writing, as fully as you can. They convert a threat into a plan.

1. What exactly is the project, and who is behind it? Name the project, the proponent company, its owners and parent, and — if you can find it — the financiers. Is it a coal or thermal plant, a mine, a dam, a port or corridor, a real-estate or industrial scheme? A private consortium, a state project, a public-private partnership? The precise identity determines which levers apply — a foreign-financed project opens investor and lender pressure; a project on community land opens consent rights.

2. Where exactly is it, and what protected features and rights does it touch? Get the boundaries and overlay them on what you know: Is it on community land held by a registered community? On or near a forest, a wetland, a marine or protected area, a World Heritage Site as at Lamu? On a coast or fishery, a rangeland, farmland? This overlay is the single most important thing you can produce, because Kenya's strongest levers — community-land consent, the protection of forests, wetlands, and heritage — are triggered by exactly these features.

3. What stage is it at, and what decision is imminent? Has a project report gone to NEMA? Is a full EIA study under way, and is its public participation scheduled or past? Has the EIA licence been granted? Are sectoral approvals and land acquisition pending? Identify the next decision and its date, because the openings — the public participation, the thirty-day window to appeal a licence to the Tribunal — are strictly time-bound.

4. What does it need next that it does not yet have? Every project depends on permissions it has not all secured — an EIA licence not yet granted or under challenge, community-land consent, land not yet acquired, financing not yet closed. The permission it still needs is where it is most vulnerable. A project awaiting its licence or its land is far more contestable than one already built and running.

5. Who else is affected, and who already opposes it? List the affected communities, the fishers, pastoralists, and farmers, the neighbouring settlements, and any local leaders, organisations, or public-interest lawyers already concerned. You are almost never alone, and Kenya has a dense network of environmental and public-interest organisations. Knowing who shares the stake tells you who your coalition can be — Save Lamu united some forty groups.

A Worked Example

Consider a coastal fishing community who learn that a large industrial power plant has been licensed near their shore — beside the reefs and mangroves their fishery depends on and a heritage town that draws tourists.

Applying the five questions: **What and who** — a named company, perhaps a consortium with foreign financing, holds the EIA licence; the community traces its ownership and lenders. **Where** — the site sits beside a marine and heritage area, and the community's fishery and livelihoods depend on the waters the plant would affect; the overlay shows a direct threat to fisheries, health, and heritage. **Stage** — NEMA has granted the licence, but the public participation during the assessment was thin and the study barely addressed the community's fisheries and health. **What it needs next** — a lawful licence resting on a sound study and genuine participation, which this is not, and financing that reputational pressure could shake. **Who else** — a coalition of local groups, the fishers' associations, public-interest lawyers, and a national anti-coal campaign.

From those answers a strategy writes itself: **the project's decisive weakness is a defective assessment and a hollow public participation beside a fragile, treasured coast** — exactly the Lamu pattern — reinforced by the threat to fisheries, health, and heritage. The community's first moves are to obtain the EIA study and licence, to document the thin participation and the study's silence on their fishery and health, to map the marine and heritage protections, and to bring in the public-interest lawyers and the national campaign to appeal the licence to the Tribunal within the time limit. That is a far stronger position than generalized objection — and it is the position from which the Lamu community won.

STEP 2: DOCUMENTATION

Documentation is the foundation of everything that follows. A community that can prove what is happening — with dates, records, photographs, and official documents — is a community that can act. One that only has fears and rumours cannot. This step builds your evidentiary base in three layers.

Layer 1: The Official Record

The first layer is the paper the project itself generates and the state holds. This is what makes a challenge credible, because it is the government's and the company's own record used against the decision.

Assemble, as far as you can obtain them: the **project report** and the full **EIA study report**; the record of the **public participation** the study is required to include — the notices, the meetings, the attendance, the responses; the **EIA licence** and its conditions; the **sectoral approvals** and any **land** documents, including any use of community or public land; and any **county planning** approvals. Much of this you can obtain through the **Access to Information Act**, which gives every citizen a right to information held by the state and, in some cases, by private bodies. The EIA study and the public-participation record deserve special attention: if the study ignored the community's fisheries, health, or livelihoods, or if the participation did not genuinely reach and hear the affected people, those are defects at the heart of the licence — precisely the defects the Tribunal found at Lamu.

Layer 2: The Physical and Environmental Reality

The second layer is the ground truth — what is actually happening and what is actually at stake, recorded in a way that will stand up.

Photograph and film the site and the activity, recording the date and location of every image: the beacons and survey marks, the cleared land, the machinery, the shoreline, the mangroves and reefs, the affected settlements. Map the project against what it threatens — the fishery, the forest, the wetland, the marine or heritage area, the community land, the settlements. Record the environmental baseline while you still can: the state of the water and the reefs, the fish catch, the vegetation, so that later damage can be shown against a documented starting point. Where you can, gather simple, dated measurements and repeat photographs from fixed points over time. This is the evidence that turns "we are worried" into "here is what is being destroyed, and here is where the law forbids it." For a coastal or fishery case in particular, evidence about the marine environment repays special care: the state of the reefs and seagrass, the fish catch and the species that depend on the mangroves, the number of households and boats that fish the affected waters, and the seasonal patterns the community knows. A marine scientist or fisheries expert can turn that local knowledge into the technical case that an assessment which glossed over the fishery is fatally incomplete — and where the project is a coal plant, the climate and air-quality impacts are now, after Lamu, squarely part of what a lawful assessment must confront. The broader principle holds for any project: identify the one or two impacts the assessment most conspicuously failed to study — the fishery, the water, the health effects, the climate — and build the technical record on exactly those, because a defect in a central impact is far more powerful before the Tribunal than a scattering of minor complaints.

Layer 3: The Human Impact

The third layer is the community's own record, and in Kenya — where fishing, pastoralist, and farming livelihoods are inseparable from land, water, and coast — it is powerful.

Collect statements from the affected households: who they are, what land, water, fishery, or rangeland they depend on, what they stand to lose, and how they will be displaced or impoverished. Record the community's relationship to the land, its community-land claim, and any cultural or heritage significance, because these carry real legal weight. Document the conduct of the public participation and of any consultation — whether people were genuinely informed and heard, or presented with a decision already made. Record the losses: lost fisheries, lost grazing, lost land, damaged health, damaged heritage. These human records do two things: they are evidence of harm for the Tribunal and the courts, and they are the material of a media and mobilisation campaign that can reach the county capital, Nairobi, and the world — as the Lamu community's story did.

Keep everything organised, backed up, and dated. A shared, secured archive — copies in more than one place — protects your work and lets your allies and lawyers use it.

WHAT TO GATHER, AND WHERE TO FIND IT

This section is a practical checklist: the specific records that matter, and where in the Kenyan system to look for them. Not all will be available for every project, but knowing what to ask for — and being seen to ask precisely — is itself a source of strength.

The project report and EIA study. From NEMA and the proponent: the project report that triggered screening and the full EIA study report. Read them for what they study and what they omit — health, fisheries, water, livelihoods, heritage, climate.

The public-participation record. From the EIA study and NEMA: the notices, the meeting records, the attendance, and the responses to concerns raised. Compare it against reality — were the affected people genuinely reached and heard, or was it a formality? A hollow participation is a defect in the licence, as Lamu decisively showed.

The EIA licence and its conditions. From NEMA: the licence and every condition attached. The conditions matter twice — as evidence of the risks NEMA itself recognised, and because their breach is a violation you can act on.

The sectoral approvals and land documents. From the relevant authorities and the land registry: the sectoral permits, the land acquisition, and any use of community or public land. Whether a registered community's consent was obtained is a central question on community land.

The county planning approvals. From the county government: the physical-planning and land-use approvals, and whether the project conforms to county plans and protected-area designations.

Ownership, finance, and violations. From company records, any stock-exchange disclosures, financing announcements, and inspection or monitoring reports: who owns and finances the project, and any documented non-compliance. The financiers are often a decisive pressure point. A project may hold every Kenyan permit and still fail if its lenders withdraw, so the financing chain is worth mapping as carefully as the permit chain.

Using the Access to Information Act. The Access to Information Act gives every citizen a right to information held by the state, and in defined circumstances by private bodies, ordinarily to be supplied within twenty-one days. Frame precise requests to NEMA, the county, and the relevant authorities for the EIA study, the public-participation record, the licence and its conditions, and the approvals. The request itself both gathers evidence and puts officials on notice that the community is organised and watching; a refusal can be challenged.

The act of assembling this record changes how you are treated. A community that arrives with the EIA study, the public-participation record, the licence conditions, and a map of its land and rights is a community that NEMA, the Tribunal, the courts, and the press take seriously.

STEP 3: BUILDING LOCAL OPPOSITION

Documentation gives you a case; organising gives you power. In Kenya, where community coalitions have taken on flagship projects and won, a well-built coalition is your engine. This step builds it in four phases.

Phase 1: The Core Group

Start with a small, committed core — the households most directly affected, the fishers, pastoralists, or farmers who know the land and water, and a few trusted, energetic organisers. This group does the early work: the documentation, the information requests, the mapping of allies. Keep it tight enough to move quickly and decide clearly, and make sure it includes people with standing — respected elders, community leaders, association heads — whose word carries weight locally. In Kenya the credibility of the affected community itself, especially a community defending its coast, land, or water, is your greatest asset; the core group exists to organise around it, not to substitute for it.

Phase 2: Broadening the Base

From the core, widen to the full circle of the affected: the surrounding settlements, the fishers' and pastoralists' associations, the neighbouring communities, and the local groups. Hold meetings where people can see the evidence and understand the stake — the map of the project over the fishery and the land, the EIA study, the licence conditions. Give people a clear, honest account of what is proposed, what it threatens, and what the community can lawfully do. The aim is a broad, informed base that can speak with one voice in the public participation, in the Tribunal, in the press, and to the authorities. Breadth matters: Save Lamu united some forty groups, and a fight that visibly involves a whole community and region is far harder to dismiss than one attributed to a few.

Phase 3: Allies and Expertise

Kenya's decisive advantage for organised communities is its dense network of environmental organisations, public-interest law groups, and human-rights bodies. Reach out to them early. Public-interest law organisations have taken NEMA licences to the Tribunal and constitutional questions to the courts, as they did at Lamu. Environmental and climate campaigns can bring national and international reach — the deCOALonize movement carried the Lamu fight across the region. Human-rights and community-land organisations can help a community assert its land rights. Scientists, health experts, and environmental economists can supply the technical critique of an EIA that turns objection into evidence. Bring them in as partners, share your documentation, and let their experience shape your strategy — the Lamu coalition's blend of local community, national campaign, and public-interest lawyers is the model.

Phase 4: Structure and Sustainability

A fight against a large project is long — the Lamu battle ran for years, through a Tribunal ruling and an appeal. Build a structure that can last: clear roles, a shared and secure archive, a way to make decisions, a means to keep the wider community informed, and a plan for the emotional, financial, and legal toll. Decide early how you will handle pressure and risk — because environmental defenders in Kenya have faced intimidation, and a community should go in with its eyes open, its solidarity firm, and legal support on hand. Sustainability is itself a form of power: a government-backed project counts on communities tiring, and a coalition that endures is one that can see a case through the Tribunal, the appeal, and the years of pressure — as Lamu did.

A Worked Coalition Example

Return to the coastal fishing community. Their core group — a handful of affected households, fishers, and respected

elders — gathers the EIA study, the licence, and a map of the plant beside the reefs and mangroves, much of it obtained through information requests. They broaden the base by holding meetings across the affected villages, where every household sees that the project threatens the fishery and the heritage that sustain them; the fishers' associations and neighbouring communities join. They bring in public-interest lawyers and a national anti-coal campaign that recognise a Lamu-type case at once, supply expert critiques of the study, and prepare a Tribunal appeal within the time limit. They build a durable structure — a documentation lead, a spokesperson, a legal liaison, a secure archive — designed to last through an appeal. Within months the community has moved from scattered worried villages to an organised coalition of many groups, with expert allies, a legal theory, and a clear demand: cancel a licence built on a false assessment and a hollow participation. That is the position from which the Lamu community won.

STEP 4: LEGAL CHALLENGES

Law is one of Kenya's real levers — arguably its sharpest — because the Constitution gives the environment unusual protection and the country has a specialist tribunal and court to enforce it. This section explains the routes, honestly, including their limits.

The National Environment Tribunal

The most important legal fact for a Kenyan community fighting a project is the **National Environment Tribunal (NET)**, established under the framework environmental law. Its core function is to hear appeals against NEMA's licensing decisions — including the grant of an EIA licence — and it can confirm, vary, or **cancel** a licence. An appeal against a licence must ordinarily be lodged within a strict period (about thirty days of the decision), which makes early documentation and legal contact essential. The Tribunal is exactly the route Save Lamu took: it heard the community's appeal against the coal plant's EIA licence and, in 2019, cancelled it, finding the environmental and social impact assessment inadequate and the public participation deficient, and ordering that any revived project undergo a fresh assessment. The lesson is precise: **where a NEMA licence rests on a defective assessment or a hollow public participation, the Tribunal can cancel it — and that is often a community's sharpest and fastest legal weapon.** The framework law reinforces this from another direction: it contains its own guarantee, echoing the Constitution, that a person alleging the right to a clean and healthy environment has been or is likely to be threatened may seek relief without having to prove personal injury — so the community's standing to bring its case is doubly secured, in the statute and in the Constitution alike. That removes at the outset the objection that so often defeats environmental litigation elsewhere: that the people bringing the case are not sufficiently 'affected' to be heard.

The Constitutional Right and the Courts

Kenya's most distinctive lever is constitutional. **Article 42 of the 2010 Constitution guarantees every person the right to a clean and healthy environment**, for present and future generations. **Article 70 lets any person who alleges that this right has been, is being, or is likely to be denied, violated, infringed, or threatened apply to court for redress — and expressly provides that the person does not have to show that they have suffered loss or injury.** This relaxed standing is genuinely powerful: it means any Kenyan, or any organisation acting in the public interest, can bring an environmental case, without the barriers that defeat such suits elsewhere. These cases are heard by the **Environment and Land Court**, a specialist court of the same status as the High Court, which also hears appeals from the Tribunal — as it did in upholding the Lamu cancellation. The court can make wide orders: to prevent, stop, or remedy environmental harm, and to compel compliance. Article 69 sets out the state's environmental obligations, and public participation is entrenched as a national value under Article 10 — so a failure to consult is not only a breach of the impact-assessment rules but a constitutional failing. This layering matters. Public participation appears three times over in Kenyan law — as a national value binding all state organs under Article 10, as a thread through the state's environmental duties under Article 69, and as a concrete requirement in the impact-assessment regulations — so that a failure to consult can be attacked at every level at once. Article 35's right of access to information, operationalised by the Access to Information Act, gives you the means to prove the failure; and the Constitution's recognition of community land under Article 63 anchors the community-land law. The Environment and Land Court itself was created to give these rights a specialist home, established as a court of equal status to the High Court under the 2011 law that followed the Constitution's command.

Community Land and Access to Information

Two further laws give communities concrete tools. The **Community Land Act** recognises land held by communities and requires the registered community's involvement and consent in decisions about that land, so that a project on community

land must reckon with the community as a rights-holder, not merely a bystander. The strength of community and Indigenous land claims in Kenya has been affirmed at the highest regional level: the Endorois community, evicted from their land around Lake Bogoria, won a finding from the African Commission on Human and Peoples' Rights that their rights had been violated, and the Ogiek of the Mau Forest won a similar landmark judgment from the African Court on Human and Peoples' Rights — rulings that establish, in principle, that communities cannot simply be cleared from their ancestral lands for a project or a conservation scheme without their rights being honoured. These regional avenues are slow and their enforcement uneven, but they are a further front, and a powerful statement of the standing of community land rights that a domestic campaign can invoke. The **Access to Information Act** operationalises the constitutional right to information, giving communities the means to extract the record on which every challenge is built. Together with the environmental law's own provisions, these turn the Constitution's promises into usable levers.

The Honest Limits

Be clear-eyed. The Tribunal and the courts are real and powerful levers, and Kenya's have delivered outright wins — but litigation is uncertain and can be slow, and a determined proponent will appeal. Lamu is the essential lesson in both directions: the community won at the Tribunal in 2019, but the company appealed, and the cancellation was secured only years later when the Environment and Land Court upheld it. Against a project with an adequate assessment and genuine participation, backed by the state, a challenge may fail, and the realistic gains are delay, conditions, and safeguards. The strict thirty-day window to appeal a licence is easily missed. So use the legal routes — they are among the strongest in Africa — but pair them with community-land consent, the press, and mobilisation, be ready for an appeal, and measure success in cancelled or conditioned licences, delay, safeguards, and exposure as well as a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence does not speak for itself. To move NEMA, a tribunal, a court, or the public, you must turn what you have gathered into clear, specific arguments aimed at the right decision. This section shows how.

From a document to a legal defect. Do not simply hand over the EIA study; identify what is wrong with it. If the public participation did not genuinely reach and hear the affected community, the argument is: *the participation the law and the Constitution require did not happen, and the licence built on it is invalid* — the very finding that cancelled the Lamu licence. If the study ignored the community's fishery, health, or the project's climate impact, the argument is: *the assessment omitted central impacts and cannot lawfully support the licence*. Tie every defect to the specific requirement it breaches.

From your rights to a constitutional claim. The Article 42 right becomes: *this project threatens our right, and every Kenyan's right, to a clean and healthy environment, and under Article 70 we may go to court to defend it without proving personal loss*. The community-land record becomes: *this is our registered community land, and it cannot be taken or used without our consent*.

From photographs to a documented violation. Dated, located images of clearing, construction, or pollution in breach of the licence conditions become: *here is proof that the project is operating in violation, at this place, on this date — and here is the action the law requires*.

From testimony to harm. The households' statements become: *this project takes the fishery, land, and health these named families depend on, in violation of their constitutional right to a clean and healthy environment*.

From finance to leverage. The ownership and financing record becomes: *this project depends on financiers and investors whose standards and reputation this fight touches — and who have walked away from projects like it before*.

Match the argument to the venue. To NEMA, argue the study's defects and the failed participation and demand the licence be refused or revoked. To the National Environment Tribunal, argue the licence's invalidity within the appeal window. To the Environment and Land Court, argue the violation of the constitutional right. To the press and the public, argue the human story — the fishery that will die, the heritage that will be lost, the community that was never truly asked. The same evidence, aimed differently, does different work.

STEP 5: MEDIA STRATEGY

In Kenya, publicity is power. The country has a large, free, and combative press, an intensely engaged public, and a

history in which national and international attention has changed the fate of projects. For a financed or foreign-linked project, coverage reaches lenders and investors. This step turns your evidence and your story into pressure.

Why Media Matters Here

Lamu became a national and international cause — the heritage islands, the fishers, the coalition of communities against a billion-dollar coal plant — and that attention reached the project's financiers and made the fight impossible to ignore. Publicity does three things: it raises the political cost of a harmful decision, it reaches the lenders and investors who care about reputation, and it protects the campaigners themselves, because a watched community is harder to intimidate.

Building the Story

Lead with the human and the concrete, not the technical. The story is not "the EIA study was procedurally deficient"; it is "the reefs and mangroves our families have fished for generations, the heritage town that draws the world, are to be poisoned by a coal plant, and we were never truly asked." Use your strongest material: the dated photographs of the coast and the mangroves, the map of the plant beside the fishery and the heritage site, the testimony of named fishers, the fact — where it applies — that a tribunal has already cancelled the licence. Keep the facts scrupulously accurate; your credibility is your armour.

Reaching the Audiences

Work several audiences at once. **Local and national press** carry the story to the county capital and Nairobi, where political pressure builds. **Environmental and human-rights networks** amplify and lend authority. **International media and networks** matter especially for financed or foreign-linked projects, because they reach lenders, investors, and the global public — and the climate dimension of a coal plant draws a worldwide audience. **Social and independent digital media** let the community speak in its own voice and document in real time. Provide ready material — clear photographs with captions, short accurate summaries, a map, and a few compelling testimonies — so that journalists and allies can carry your story faithfully. And remember that the audiences compound: a story that reaches the national press builds pressure on officials; a story that reaches the international press and the climate movement reaches the lenders and insurers; and each accurate report makes the next easier to place. A community that tells its story truthfully and consistently over years becomes a trusted source that journalists return to, rather than a single day's headline — the kind of sustained presence that helped keep Lamu in the national conversation through a long fight.

Discipline and Care

Two cautions. First, accuracy above all: one exaggeration handed to the other side can be used to discredit everything. Second, care for people's safety: environmental defenders in Kenya have faced intimidation, so weigh what you publish, protect vulnerable individuals, and let the community decide together what it is willing to say publicly. Used with discipline, the press is among the most powerful and protective levers a Kenyan community has.

EMAILS & LETTERS

Below are eight templates for the written communications a campaign most often needs. Adapt them to your facts; keep them precise, calm, and specific; and keep copies of everything you send.

8A — Access-to-information request for the EIA study and participation record (to NEMA). *Subject: Request under the Access to Information Act — EIA study and public-participation record for [project].* "Under the Access to Information Act, we, residents of [place], request copies of the project report, the full EIA study report, the record of public participation, and the EIA licence and its conditions for [project], [location]. As affected persons we are entitled to this information. Please provide it within the twenty-one days the law allows, or state the legal ground for any exemption. [Contact.]"

8B — Access-to-information request for approvals and land (to the county / land registry). *Subject: Request for approvals and land documents — [project].* "Under the Access to Information Act, we request the county physical-planning and land-use approvals for [project], and the land documents, including any use of community or public land at [location], and any protected-area designations that apply. [Contact.]"

8C — Submission during the public participation (to NEMA and the proponent's expert). *Subject: Public-participation submission and objection — [project].* "We, residents of [place], submit the following concerns and object to

the licensing of [project]: [the study fails to assess the impact on our fishery / water / health]; [this participation has not genuinely reached or heard the affected community]; [the project sits on our community land / a protected or heritage area]. We ask that these be recorded and addressed and that the licence be refused or a proper assessment required. [Attach evidence.]"

8D — Assertion of community-land consent (to the proponent, NEMA, and the county). *Subject: Community land and consent — [project] at [location].* "The land affected by [project] is our registered community land / land we hold and use as a community. Under the Community Land Act our involvement and consent are required for decisions affecting it. We have not consented, and we call on you to halt the project pending our community's decision. [Attach evidence.]"

8E — Notice of appeal to the National Environment Tribunal (instructing counsel). *Subject: Appeal against the EIA licence for [project].* "We wish to appeal to the National Environment Tribunal the EIA licence granted to [project] on [date], within the period the law allows, on the grounds that [the assessment was inadequate / the public participation was deficient / the study ignored key impacts]. Please advise and act urgently, as the appeal window is short. [Attach the licence, the EIA study, the participation record, and our evidence.]"

8F — Petition to the Environment and Land Court (instructing counsel). *Subject: Constitutional petition — right to a clean and healthy environment, [project].* "We instruct you to petition the Environment and Land Court under Articles 42 and 70 of the Constitution, on the ground that [project] threatens our right, and the public's right, to a clean and healthy environment, and that we need not demonstrate personal loss to seek redress. We seek orders to [halt / review] the project. [Attach evidence.]"

8G — Letter to the press (national or international). *Subject: [Community] moves to protect [coast / forest / land] from [project].* "For generations, the people of [place] have fished the reefs and mangroves of [location] and lived from [land/water]. Now [project], by [company] and [financed by ...], threatens to [poison the fishery / clear the forest / take the land] — and our community was never truly asked. We can provide photographs, documents, a map, and interviews. [Contact.]"

8H — Letter to a public-interest law group or environmental organisation seeking partnership. *Subject: Request for support — [project] at [location].* "Our community faces [project] on [our coast / community land / forest]. We have gathered [the EIA study, the licence, the participation record, photographs, testimonies] and believe a National Environment Tribunal appeal and a constitutional petition apply. We ask for your legal and technical support and help raising the case, and we are ready to work as partners. [Contact and summary of evidence.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not every community has months and a lawyer at the outset. If you must act fast and lean, do these things, in this order, and you will have done the most important work.

1. Pin down the project and its footprint. Get the proponent, the type, and the boundaries. Overlay it, even roughly, on the fishery, the community land, the forest, the protected or heritage area. If it threatens your land or a protected area, you may already have your strongest lever.

2. Request the record. Send access-to-information requests for the EIA study, the public-participation record, the licence and conditions, and the approvals (8A/8B). The requests gather your evidence and put officials on notice.

3. Photograph and record everything, with dates and locations. The site, the clearing, the shoreline, the mangroves, the affected settlements. Dated evidence costs nothing and matters most — and baseline images before damage are especially powerful.

4. Use the public participation, and object formally. If the participation is open, take part and object in writing (8C); if community land is involved, assert your consent right (8D). These are formal legal acts, not mere protest, and a failed participation is fatal to a licence.

5. Watch the thirty-day clock and get a lawyer. A NEMA licence can be appealed to the National Environment Tribunal, but only within a short window. Contact a public-interest law group or environmental organisation (8H, 8E) at once — this window is easily lost, and they can move faster than you can alone.

6. Raise the alarm and find your movement. Alert the press (8G) and reach out to an environmental or human-rights organisation. Kenya's movements have fought coal, mining, and dam projects and know the way — and a national campaign can carry your story far.

Even with little time, these six steps create a record, exercise your formal rights, protect the appeal window, and build a coalition — the things every later step is built on.

WHEN THE SYSTEM IS TILTED

Much of this guide assumes the ordinary machinery works: assessments are honest, participation is real, tribunals decide, and their decisions hold. Often in Kenya they do not. This section is about acting when the system is tilted against you.

The Characteristic Kenyan Problem: A State That Backs the Project

Kenya's defining difficulty is often not the absence of law but a government determined to see a flagship project built. The Lamu coal plant was part of a national development push, and its licence was granted over the community's objections; the win came only after years of litigation and an appeal. The lesson is not that the law is worthless — it is real, and it wins — but that **against a government-backed project you must be prepared for a long fight, and to use the law's full strength: the Tribunal, the constitutional right, the courts, and the appeal.** Plan for endurance. Keep the coalition intact through the Tribunal and the appeal; document everything; and make the state's backing of a flawed project a public and political cost. A community that expects a long fight and prepares for it is a community that cannot be worn down by the first setback.

When Participation Is a Formality

A second, common form of tilt is public participation reduced to a formality — a notice few see, a meeting held far away or in the wrong language, a record that ignores the objections raised. This is not a reason to disengage; it is a defect to document. Kenyan courts and the Tribunal have repeatedly treated genuine public participation as a legal requirement, not a box to tick, and a participation that did not truly reach and hear the affected community is a flaw that can void a licence — as it did at Lamu. So take part fully, in writing and on the record, and where the participation is hollow, document exactly how, because that documentation is itself a weapon.

When Officials Will Not Act

Where NEMA grants a defective licence or ignores a legitimate objection, escalate methodically. Put every submission and request in writing, so that the failure is documented — the access-to-information law is invaluable here. Take a defective licence to the **National Environment Tribunal** within the window, and a threatened constitutional right to the **Environment and Land Court**, which any person may approach. Use the **Public Complaints Committee** for administrative failures. And make the failure public: an authority that ignores a quiet letter may act when the defect is national news and the movements are watching.

When to Reassess

Be honest with your community about the odds. Against a government-backed project with an adequate assessment and genuine participation, a clean permanent stop may not be achievable, and it is not a failure to say so. In that situation the realistic and still-valuable wins are a licence conditioned or sent back for a fresh assessment, delay that raises the cost and shakes the financing, safeguards and compensation, and exposure that raises the price of the harm. Choose the fight you can win, protect your people — especially given the real risks defenders face — and keep the record, because officials, governments, and courts change, and a well-documented campaign is ready when they do. And do not underrate delay itself as an outcome. A large project delayed for years by a determined community is a project whose costs mount, whose financing can lapse, whose investors can lose patience, and whose political champions can move on — so that even where the law does not hand you a clean, final stop, the endurance of an organised community can become the decisive lever, wearing a project down until its backers abandon it.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes the tilt is not mere inertia but corruption — a licence that should never have issued, an assessment written to order, an official with an interest in the outcome, land steered to a favoured party. Large energy, mining, and

infrastructure projects are chronically exposed to it. This section is about recognising and confronting capture, carefully.

Recognising the Signs

Corruption rarely announces itself, but there are patterns. A licence granted despite a plainly inadequate assessment; a public participation engineered to exclude the affected; an EIA study that reads as if written for the proponent; an official who moves between the regulator and the industry; land or a contract that benefits a connected party; the sudden reversal of a sympathetic official's position — each is a warning sign. So are inflated costs and opaque procurement on a big public project.

Who Is Supposed to Guard Against It

Kenya has machinery against corruption and for transparency. The **anti-corruption commission** investigates graft, to which licensing, procurement, and land are notoriously exposed. The **auditor-general** scrutinises the use of public money on state and public-private projects. The **access-to-information law** lets you extract the record and expose the defect. The **Tribunal and the courts** can cancel licences tainted by illegality. And the **free press and investigative journalists** have repeatedly exposed fraudulent assessments and captured deals. These are the venues to which evidence of corruption should be directed.

How to Confront It — Safely

Confronting corruption demands even more care than ordinary campaigning. **Document rigorously and factually** — dates, decisions, documents, connections — and distinguish always between what you can prove and what you suspect. **Do not make public accusations you cannot substantiate**, both because they can be used to discredit you and because defamation and other suits have been used against Kenyan campaigners. **Route serious evidence to the proper bodies** — the anti-corruption commission, the auditor-general, the courts, and established investigative journalists — rather than confronting powerful interests alone. **Protect the people involved**, especially insiders and witnesses. And **lean on your allies**: public-interest law groups, human-rights organisations, and journalists know how to handle such material and can shield individuals. Corruption is real in Kenyan project approvals, and it can be confronted — the anti-corruption and transparency tools exist — but it must be confronted with evidence, through institutions, and with sober attention to the safety of everyone involved.

INTEGRATION & TIMELINE

The steps in this guide are not a menu from which to pick one; they are strands to be woven together. This section shows how they fit, and over what kind of time.

How the Strands Reinforce One Another

Documentation feeds everything: it is the basis of the objection, the Tribunal appeal, the constitutional petition, the community-land claim, and the press story. Organising gives the documentation weight and the campaign the endurance to see a case through an appeal. The legal routes — the Tribunal, the Environment and Land Court, the constitutional right — turn the record into binding decisions. The press turns it into political and reputational cost that reaches financiers. And the follow-through carries a Tribunal win through the appeal that a determined proponent will bring. The reverse also holds: a legal case with no organised community and no public campaign behind it can be won narrowly and then quietly reversed or circumvented, while a mass protest with no legal case behind it can be dispersed without lasting consequence. It is the weaving together — evidence, organisation, law, and publicity, sustained through the years an appeal can take — that gives a community the weight to prevail, and that is the real lesson of how Lamu was won. Each strand is stronger for the others: a Tribunal appeal amplified by the press and backed by a coalition of forty groups is a different thing from a lonely case, and a constitutional petition reinforced by national attention is far harder to brush aside — which is precisely the combination that carried Lamu.

A Realistic Timeline

Expect a long campaign, and be ready for an appeal. In the **first weeks**, pin down the project, send the information requests, gather the initial documentation, take part in any public participation and object, and reach out to allies. In the **first few months**, build the coalition, obtain and analyse the EIA study and the licence, produce the map overlay, and — if a licence is granted — file the Tribunal appeal within the thirty-day window. Over the **following one to several years**,

pursue the Tribunal and, where the constitutional right is engaged, the Environment and Land Court; sustain the press and public campaign; and be ready to defend a Tribunal win on appeal. The Lamu fight ran for the better part of a decade, from the 2016 licence to the appeal upheld years later. Build for endurance, mark and celebrate the interim wins — a cancelled licence, a fresh assessment ordered, a documented violation acted on, a financier that walks away — and understand that in Kenya the decisive struggle is often to win and then to hold the win through the appeal.

Holding Two Truths

Throughout, hold the two truths this guide began with. Kenya gives organised communities genuine, powerful levers — a constitutional right any person can enforce, a public-participation requirement whose breach voids a licence, a specialist tribunal that can cancel it, a dedicated environment court, community-land consent, an access-to-information law, a fierce press, and deep civil-society allies. And Kenya's central weakness is a state that backs flagship projects, participation sometimes reduced to a formality, and fights that demand years of endurance and can carry risk. A community that understands both will neither despair nor overpromise. It will use every lever, win where it can, hold the win through the appeal, protect its people, and keep the record — knowing that in Kenya a coastal community once beat a billion-dollar coal plant.

FINAL ASSESSMENT

The honest bottom line for a Kenyan community facing a destructive project is this. **You are not powerless, and you are not without precedent — Kenya is a place where a coastal community defeated a billion-dollar coal plant, having its licence cancelled for a flawed assessment and a failure to consult, and the cancellation upheld in court.** The tools are real: a constitutional right to a clean and healthy environment that any person can enforce without proving personal loss, a public-participation requirement whose breach voids a licence, a specialist National Environment Tribunal that can cancel a NEMA licence, a dedicated Environment and Land Court, community-land consent, an access-to-information law, and a free press and deep civil-society allies.

But the tools often demand endurance to make them work. Kenya's characteristic problem is not the absence of rights but a state that backs its flagship projects, participation sometimes reduced to a formality, and fights that run for years and can carry risk. So temper hope with realism. Where the assessment is genuinely defective or the participation was hollow, and you can reach the Tribunal, the courts, and the press, your chances of stopping, stalling, or reshaping a project are real — Lamu is the proof. Where the government champions the project and the process was sound, an outright stop is hard, and the realistic wins are a conditioned licence or a fresh assessment, delay, safeguards, and exposure.

Whatever your situation, the method is the same: identify the project and its weakest link precisely — most often a defective assessment or a hollow public participation; document relentlessly, using the access-to-information law to extract the record; assert the participation and the rights the law gives you — the public participation, the Article 42 right any person can enforce, community-land consent; organise a broad and enduring coalition built to last through an appeal; bring in the public-interest lawyers and the environmental campaigns; appeal a defective licence to the National Environment Tribunal within the thirty-day window and, where the constitutional right is at stake, petition the Environment and Land Court; take the story to the press; and follow through to hold the win. Combine the strands, protect your people, keep the record, and endure. The people of Lamu, a coalition of small coastal communities, showed Kenya and the world that a determined community with the law on its side can bring down a billion-dollar coal plant. Their fight was long, costly, and unfinished for years even after the first victory — and yet it was won, and it now stands as a precedent that reaches far beyond one stretch of the Kenyan coast. That a coalition of small communities could hold its ground through a decade of litigation and appeal, against a flagship project and the state that backed it, is the clearest proof that in Kenya an organised community with the law on its side can prevail. Their fight is your reason to begin, and your reason to endure.